

This matter is before the Court on a petition for compromise of minor's claims. Appearances by counsel for Petitioner and the Petition/guardian ad litem are required. Petitioner is directed to file a corrected Petition to correct the below deficiencies prior to the hearing. If not filed prior to the hearing, the Court intends to continue the hearing to March 23, 2026 at 1:30 p.m.

- The petition does not contain a description of the settlement terms – section 10(c) is blank. Please complete this section. The Court understands the settlement terms are set forth in an attachment, but this section should not be blank. It should be completed specifically or a reference to a different attachment such as 18b(3) could be made.
- Please fill in the defendant's name in section 11(b)
- Please do not include the settlement proposal in the middle of the JC Form Petition. Currently, it is inserted as pay 6 of the Petition, as well as attached as the 18b(3) attachment.
- Section 17(c) and 17(f) - please clarify. If fees have not yet been approved and received, then the information in 17(c) should actually be set forth in 17(f). 17(c) is for fees already received, while 17(f) is for fees anticipated. The reference to "upon court approv" seems to indicate the incorrect section is filled in.

12. CU0002439 Brandon Huerta vs. Jason Waters, et al.

No appearance required. In light of the proof of service of the Summons and Complaint filed on January 6, 2026, the OSC re Dismissal is hereby dismissed.

13. CU0002522 Douglas Gray vs. Infinity Insurance

On the Court's own motion, the Court vacates the OSC re Dismissal set for April 27, 2026. A proof of service evidencing service on Respondent has now been filed.

The Court nominates five arbitrators as more specifically set forth below. Further the Court grants the motion to compel raw data. Sanctions are awarded to Petitioner in the amount of \$4,500.00 which shall be paid within thirty (30) days of service of entry of this order.

Legal Standard

Insurance Code § 11580.2 mandates arbitration of uninsured and underinsured motorist claim disputes between insurers and insureds regarding liability, damages, or both. "The policy or an endorsement added thereto shall provide that the determination as to whether the insured shall be legally entitled to recover damages, and if so entitled, the amount thereof, shall be made by agreement between the insured and the insurer or, in the event of disagreement, by arbitration." Ins. Code. § 11580.2(f).

In general, "an arbitration has a life of its own outside the judicial system." *Briggs v. Resolution Remedies* (2008) 168 Cal.App.4th 1395, 1401. However, "Insurance Code section 11580.2, subdivision (f) commits discovery disputes in uninsured motorist arbitrations to the superior court." *Id.* fn. 6.